IN THE DISTRICT COURT HELD AT AKIM ODA ON 23RD JUNE 2025 BEFORE HER WORSHIP ADELINE OWUSUA ASANTE (MS.) SITTING AS THE DISTRICT MAGISTRATE.

A1/10/22

VERONICA SERWAA OPPONG **PLAINTIFF**
SUCCESSOR OF MAAME ADWOA NKUMA
AKIM ACHIASE

VRS.

KOJO NKUM **DEFENDANT**
OF AKIM ACHIASE

JUDGMENT

By an amended writ of summons dated 22nd February 2023 the Plaintiff instituted this action against the Defendant for the following reliefs;

1. *Declaration that the plaintiff herein being the customary successor of Maame Adwoa Nkuma (deceased) is the rightful owner by her successorship to a chamber and hall room in the House at Domeabra, Akim Achiase which said house was built by Opanin Kwame Daadom who shared/gifted the rooms among his children.*

2. *An order that the plaintiff herein is the owner of the remaining undeveloped plot of land since the defendant and siblings have built on part of it leaving that of plaintiff.*

3. *Perpetual injunction restraining the defendant, his agents, workmen, assigns from dealing or interfering with the property in dispute.*

That plaintiff says the parents of her mother Adwoa Nkuma are Opanin Kwame Daadom and Ama Amoakoa (both deceased) and during the life time of her grand-parents, they built four (4) chamber and hall rooms at Akim Achiase on an undeveloped land which was been shared equally.

She says when her grandmother Ama Amoakoa died, her grandfather Opanin Kwame Daadom married another woman at Akim Achiase and had three (3) children namely Abena Suapem, Kofi Aberantee, Kojo Nkum (defendant herein).

The plaintiff avers that during the life time of his grandfather, Op. Kwame Daadom shared the rooms and gave one chamber and hall to his customary successor, another chamber and hall to plaintiff's mother Adwoa Nkuma and the remaining two chamber and hall rooms to the defendant and his siblings.

The plaintiff says the room gifted to her mother Adwoa Nkuma after her demise was occupied by Kwaku Fosu and later by Ama Gyanwaa and her husband who are members of the lineage of Ama Amoakoa.

The plaintiff says after the death of her mother Adwoa Nkuma, she was appointed as her customary successor but without her consent or knowledge the defendant rented the said chamber and hall room meant for the plaintiff to individuals. The plaintiff says she is entitled to the disputed chamber and room together with the undeveloped land.

The defendant says his father Opanin Kwame Daadom acquired the land together with the four (4) chamber and halls building with his mother Adwoa Nsiah (deceased). He admit that during the lifetime of his grandfather, Op. Kwame Daadom shared the rooms to his customary successor, another chamber and hall to Plaintiff's mother Adwoa Nkuma and the remaining two chamber and hall rooms to the Defendant and his siblings and the disputed room was occupied by one Kwaku Fosu.

The defendant says he rented out the disputed room to help generate income for renovation of the said room which had been abandoned for many years. He admits that the said room was granted to Plaintiff in 2020.

The defendant states that the plaintiff has no cause of action against him since the room in contention has been given to him long ago and prays for the dismissal of the suit.

The defendant says the plaintiff is still holding onto all the documents on the entire building which the defendant prays this court to order the plaintiff to return same since she is only a grand -daughter to Opanin Kwame Daadom. He counterclaimed for;

An order of the court compelling the defendant to return all documents on the Building to the Defendant's since plaintiff is only a grand-daughter to the defendant's late father property.

The issue for determination is whether or not the Plaintiff is entitled to the remaining disputed undeveloped plot of land.

The general rule in civil cases is that the Party who in his pleadings or writ raises issues essential to the success of his/her case assumes the onus of proof. See **sections 11 (1) & *(2), 12(2) of the Evidence Act, 1975 (NRCD 323).***

Where a counterclaim is filed by the Defendant, it is a separate action by a defendant and it is treated as if it were a statement of claim and the Defendant making it, a Plaintiff. Thus, the burden borne by Plaintiff in this suit is the same borne by Defendant in respect of their respective claims.

The Plaintiff testified by relying on her witness statement dated 17th March 2023 and rehashed the averments in her statement of claim. She tended in evidence *Exhibit A* which is a proposed plan of the house in the name of Kwame Daadom. She called one witness, Pw1, Appaih Kubi Isaac who corroborated her testimony.

The Defendant testified by relying on his witness statement dated 25th October 2023 which was a repetition of his averments in his Statement of Defence. The Defendant informed this court that he had given the Plaintiff the disputed property being the chamber and hall save the small undeveloped land which had been reserved for the construction of a toilet, kitchen and bathrooms.

From the evidence adduced, it is not in dispute that the disputed chamber and hall with the undeveloped land which was bequeathed to Plaintiff's mother has devolved on Plaintiff and this fact has been confirmed by Defendant.

The Defendant had admitted that the entire building together with the disputed land was shared by the original grantor and same has devolved on Plaintiff, the Plaintiff is thus entitled to judgment on the admitted fact. See ***Pomaa vs Fosuhene [1987-88] 1GLR 244***

No evidence was adduced by Defendant that Plaintiff had in her possession the documents of the building. As such no order will be made in respect of same.

Having determined that the Plaintiff has proved her case on the balance of probabilities, I hereby make the following orders.

1. *The counterclaim of Defendant fails in its entirety.*

2. *Declaration that the plaintiff herein being the customary successor to successor to Maame Adwoa Nkuma (deceased) is the rightful owner by her successorship to a chamber and hall room in the House at Domeabra, Akim Achiase which said house was built by Opanin Kwame Daadom who shared/gifted the rooms among his children.*

3. *The plaintiff is entitled to the remaining undeveloped plot of land.*

4. *The defendant, his agents, workmen, assigns are perpetually restrained from dealing or interfering with the property in dispute.*

(SGD)

ADELINE OWUSUA ASANTE (MS.)

(MAGISTRATE)